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San Francisco County Superior Court
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CLERK OF THE COURT
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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO

In re THE 2019 BEATRICE OI YUN CHOW REVOCABLE TRUST under agreement dated September 21, 2019	Case No. PTR-24-307301 ORDER CONFIRMING TRUST ASSET [Probate Code Secs. 850(a)(3) and 17200] Date: October 14, 2024 Time: 9:00 am Dept: 204

On August 14, 2024, Petitioner Elia Pochron, as trustee of that certain revocable living trust established by written agreement dated September 21, 2019, called the 2019 Beatrice Oi Yun Chow Revocable Trust (sometimes referred to in this petition as "the Trust," "the 2019 Trust" or "the Trust Agreement" as the context requires), filed with this Court in the above-referenced matter a verified Petition for Order Confirming Trust Asset ("Petition"), seeking an order from this Court pursuant to Probate Code Sections 850(a)(3) and 17200, confirming that the asset described below is an asset of the 2019 Trust. The matter came before the Court without a ~~on for~~ hearing on October 14, 2024, at 9:00 a.m. in Department 204 of the above-named court.

On proof being made to the satisfaction of the court, the court now makes the following findings:

1. Due notice of the hearing on the Petition has been given in all respects as required by law.

2. The real property at issue is located in the County of San Francisco. Pursuant to Probate Code Section 17004 and Code of Civil Procedure Section 410.10, this Court has jurisdiction over this matter.

3. The principal place of administration of the trust is located in the County of San Francisco. Pursuant to Probate Code Section 17005(a), San Francisco County is the proper venue for proceedings concerning the administration of the Trust.

4. Petitioner is trustee of the 2019 Trust, which is claiming an ownership interest in the real property at issue, and has standing to bring this Petition.

5. The Trust was established by Beatrice Oi Yun Chow as settlor and trustee (sometimes referred to as "Settlor" or "decedent") on September 21, 2019, and was revocable and amendable by her during her lifetime.

6. Settlor died on August 3, 2023. At the time of her death, she was a resident of San Francisco County.

7. Settlor was the acting trustee of the Trust during her lifetime. Upon Settlor's death, Petitioner became the trustee of the Trust pursuant to Section 6.1 of Article Six of the Trust Agreement. At all times since Settlor's death, Petitioner has been the sole acting trustee of the Trust.

8. In 2013, the Settlor purchased the real property located at 3009 Balboa Street, San Francisco, California (APN 1613-001C) (the "Balboa Street property" or the "subject property"). The legal description for the Balboa Street property is set forth in ~~Paragraph 12 of~~ this Court's Order, below.

9. On or about April 3, 2014, the Settlor deeded the Balboa Street property to herself, as trustee of the Beatrice Oi Yun Chow Living Trust, dated January 5, 2001 (the "2001 Trust").

10. Five years after deeding the subject property to the 2001 Trust, the Settlor created the 2019 Trust. In that Trust Agreement, the Settlor declared that any property listed in the schedule attached to the Trust was property of the Trust, and then, on the attached Schedule of

Trust Assets, the Settlor listed the Balboa Street property as a Trust asset. In addition, the Settlor made a specific bequest of the Balboa Street property at her death to Saint James Episcopal Church.

11. The Petitioner has not found any bank accounts, brokerage accounts, or real properties (other than the subject property) that are titled in the 2001 Trust. The Settlor executed a "pour over" Will at the same time the 2019 Trust was established, directing that any assets titled in her individual name be distributed to the trustee of the 2019 Trust.

12. In February 2023, attorney Scott Holland Wilson drafted a revocable trust agreement for Settlor, called the Beatrice Oi Yun Chow Revocable Trust dated February 25, 2023 (the "2023 Draft Trust"). Mr. Wilson also prepared a deed transferring the Balboa Street property to the 2023 Draft Trust. The Settlor never signed the 2023 Draft Trust. On July 15, 2024, in another matter related to the 2019 Trust, this Court determined that the unsigned 2023 Draft Trust was not valid.

13. On August 15, 2023, a deed was recorded in which the grantor, "Beatrice Oi Yun Chow, an unmarried woman," deeded the Balboa Street property to the grantee, "Beatrice Oi Yun Chow, as trustee of the Beatrice Oi Yun Chow Revocable Trust dated February 25, 2023."

14. On the date of her death, Settlor was not married and had no descendants. Her parents had long since predeceased her. Her parents had two children together: the Settlor and the Settlor's brother, Richard K. V. Voon, who also predeceased the Settlor leaving no issue. Her father had no other children. The Settlor's mother had two additional children by another man: Jeannie Oi Jin Wong and William Cheung. William Cheung is still living. Jeannie Oi Jin Wong died in 2017, leaving four children, all living, namely, Michael Hee Khai Wong, Henry Hee Henn Wong, Hee Yen Davies (also known as Hee Yen Wong), and Hee Mae Wong (also known as Emmy Hee Mae Wong), all of whom survived the Settlor. Jeannie Oi Jin Wong does not have any deceased children. The Settlor's predeceased husband, Man Chow (who died in 2011), left three children, namely, Agnes Y. Lo (also known as Agnes Yin Lo), Nelson Y. Chow, and Anne Man Chow (collectively, the Settlor's "stepchildren"), all of whom survived the decedent. The Settlor's stepchildren did not live with the Settlor when they were minors and the Settlor never

adopted them. The Settlor's intestate heirs are: William Cheung, Michael Hee Khai Wong, Henry Hee Henn Wong, Hee Yen Davies, and Hee Mae Wong.

15. The beneficiaries of the Settlor's 2001 Trust are St. James Episcopal Church in San Francisco, and the Settlor's brother, Richard K. V. Voon, who is now deceased.

16. The successor trustees of the 2001 Trust are Yung Nor Wong and Winnie Wai Wong. The Petitioner made diligent efforts to find Yung Nor Wong and Winnie Wai Wong, but was unable to find anyone who had ever heard of either of them.

17. The beneficiaries of the 2019 Trust are: the Petitioner, Petrina Grube (but only if she is trustee of the trust, which she currently is not), Roger Wickstrom (but only if he is trustee of the trust, which he currently is not), Henry Hee Henn Wong, Michael Hee Khai Wong, Anges Yin Lo, Nelson Y. Chow, Anne Man Chow, Michael Hee Khai Wong, Hee Yen Davies, Hee Mae Wong, and St. James Episcopal Church in San Francisco. Henry Hee Heen Wong waived his right to receive notice of the time and place of the hearing on the Petition and his right to receive a copy of the Petition.

18. The subject property is a residential rental building with three units. Two units are vacant, and one is occupied by Matthew Hyman, who is an adult.

19. The Settlor's declaration that all assets listed on the Trust's Schedule of Assets were Trust assets, and then both specifically listing the Balboa Street property on the Schedule of Assets and making a specific bequest of said property to a named Trust beneficiary is sufficient evidence of her intent to hold the Balboa Street property in the 2019 Trust, not the 2001 Trust. See Probate Code Section 17200(b) and Estate of Heggstad, 16 Cal. App. 4th 943 (1993).

20. The recording of the 2023 deed did not result in a valid transfer of the Balboa Street property from the 2019 Trust to the 2023 Draft Trust because the 2023 Draft Trust was not signed and was not a valid trust. Accordingly, the Balboa Street property is not held by the 2023 Draft Trust.

NOW, THEREFORE, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED as follows:

That the real property commonly known as 3009 Balboa Street, San Francisco, California, APN 1613 001C, which is legally described immediately below, is an asset of the 2019 Beatrice Oi Yun Chow Revocable Trust dated September 21, 2019, and is subject to the management and control of Elia Pochron as Trustee:

> Beginning at a point on the Southerly line of Balboa Street, distant thereon 25 feet Westerly from the Westerly line of 31st Avenue; running thence Westerly and along said line of Balboa Street 25 feet; thence at a right angle Southerly 68 feet and 5 inches; thence at a right angle Easterly 25 feet; thence at a right angle Northerly 68 feet 5 inches to the point of beginning.
>
> Being a portion of Outside Land Block No. 350.

It is so ordered.

Dated: October 14, 2024

Judge of the Superior Court

ROSS C. MOODY

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ORDERED WITHOUT HEARING